



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 13 1991

DOT-E 10531
(SECOND REVISION)

1. LCP Chemicals, Edison, NJ is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein containing a non-flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of DOT Specification 105A500W tank car tanks which are overdue for tank and safety valve tests and provides no relief from any regulations other than as specifically stated.

2. BASIS. This exemption is based on LCP Chemical's applications of January 4, 1991 and May 22, 1991, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine.

5. REGULATION AFFECTED. 49 CFR 173.29, 173.31(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 105A500W tank car tanks meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tanks and safety valves are overdue for tests.

8. SPECIAL PROVISIONS.

a. Tank cars must be marked "DOT-E 10531" in four inch letters on a contrasting background above the DOT specification number.

b. Prior to movement, the Associate Administrator for Hazardous Materials Safety must be advised in writing of each tank car tank shipment and location of respective repair facility.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

c. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. June 30, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 13 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.